

Filed on: 12.04.2024

**BEFORE THE HON'BLE FAMILY
COURT AT ADOOR**

I. A. No. 4 of 2024

in

O.P. (G. & W.). No. 1355 of 2023

RASHMI RAJ

.....PETITIONER/ Petitioner

v.

PAULOSE RAJ

.....RESPONDENT/ Respondent

**COUNTER AFFIDAVIT/
OBJECTION FILED BY
RESPONDENT IN THE ABOVE
NUMBERED I.A.**

ADVOCATES:-

ACHUTH KYLAS,
SREEJESH,
R. MAHESH MENON,
SACHIN P K
&
VARGHESE XAVIER

BEFORE THE HON'BLE FAMILY COURT AT ADOOR

I. A. No. 4 of 2024

**in
O. P. (G. & W.), No. 1355 of 2023**

RESHMI RAJI

::

PETITIONER/ Petitioner

v.

PAULOSE RAJ

::

RESPONDENT/ Respondent

COUNTER AFFIDAVIT/ OBJECTION FILED BY RESPONDENT TO

THE ABOVE NUMBERED I.A.

I, Paulose Raj, aged 34 years, S/o Rajan K.Paul, Residing at Kannotheukudyil house, Pazhayakalam Road, Thottingal, Palakkad city P.O, Palakkad District - 678014, currently residing at Kannotheukudyil House, near Galaxy vesta flat, Punnathil Padam Road, Sonia Nagar, Palarivattom P.O Ernakulam District - 682024, do hereby solemnly affirm and state as follows:-

1. I am the respondent in the above-numbered I.A. and respondent in above numbered O.P(G & W). I know the facts of the case and I am competent to swear to this affidavit.
2. It is respectfully submitted all the allegations, averments and contentions raised by the petitioner in the above-numbered I.A. is false and incorrect. Hence, the same are denied by this respondent. The above numbered I.A. is filed by the petitioners stating false and frivolous contentions and hence the same is to be dismissed with costs.
3. It is respectfully submitted that the allegation raised by the petitioner in para 1 & 2 are false and hereby denied. The allegation of the petitioner that the marriage between the petitioner and the respondent was solemnised on 02.05.2016 at Kothamangalam Kalkunnel Mar Geevarghese Sahada Jacobite Syrian Church and that Minor Naomi was born on 18.07.2019 out of wedlock are true and correct. However, further the allegation of the petitioner that the minor Naomi resided along with the petitioner and that she had pursued her studies in St.Mary's English medium school at Pathanapuram and that the respondent had taken custody of the minor daughter forcefully from the petitioner are all incorrect and false, and hence, denied by this respondent. After the marriage, the petitioner and the respondent stayed in their rental house at Thiruvananthapuram. During the initial period of Covid-19, the petitioner, respondent & minor Naomi along with petitioner's parents were residing at a rental house in Thiruvananthapuram. On 4th May, 2020 petitioner's parents dragged the petitioner and minor Naomi to their residence at Pathanapuram and hence, the respondent herein was also forced to accompany them to Pathanapuram. Minor Naomi had gone for a few days of her pre-kindergarten in St. Mary's English Medium School at Pathanapuram. That fact has been mis-stated in the affidavit along with the above numbered I.A. The petitioner herein had gone to Lithuania on 30.03.2023 without any communication to this respondent and without providing any proper care or consideration to minor daughter Naomi. The petitioner never gave any consideration or proper care to the minor Naomi while she was along with her. On the other hand, the petitioner constantly harassed, both physically and mentally, minor Naomi without even considering her age. At instances where the respondent herein had

witnessed the same, the respondent has advised and guided the petitioner not to adopt such practices and to show some kindness towards minor Naomi. However, the words of the respondent fell on deaf ears and the petitioner never gave any due regard to the respondent.

4. It is respectfully submitted that the contention used by the petitioner in para 3 & 4 of the affidavit along with I.A No 4 of 2024 in O.P(G & W) No. 1355 of 2023 is false and hence, denied by this respondent. The contention of the petitioner that she had taken a month leave from 30.03.2024 to 29.04.2024 is subject to proof and hence same are denied. Further, the petitioner contends that the petitioner had taken leave from her job so as to see minor daughter Naomi and to spend time with the daughter is false and hence, denied. The allegation of the petitioner that the respondent never allowed the petitioner to contact or to see the minor daughter Naomi is false and hence, denied. The contention of the petitioner that she is suffering huge mental agony and that her care for minor Naomi is very essential for the welfare of the minor daughter for mental and physical growth are false, and hence incorrect statement and hence, denied by this respondent. Further, the petitioner contends that she requires the interim custody of the minor daughter Naomi for the maximum period till 29.04.2024 and that she shall suffer huge hardship if the same is not allowed and hence, she had filed a petition along with an affidavit seeking for the same relief are all unsustainable, incorrect and false, and hence, the same are denied by this respondent. The respondent had taken visa for himself and minor daughter Naomi for coming to Lithuania and staying along with the petitioner and had asked the petitioner to take up the visa paper and act accordingly at her end for a smooth travel and stay of the respondent and minor daughter. However, till this date the petitioner had never ever called the respondent or acted upon the visa documents provided by the respondent. The petitioner falsely alleges that the respondent never facilitates any kind of communication or contact between the petitioner and the minor daughter. The petitioner used to a video call via WhatsApp mobile application twice or thrice a day. The respondent as well as his parents never showed any reluctance or objection towards such video calls. The respondent always encourages such video calls and always wished to lead a peaceful life along with the petitioner and their minor daughter Naomi, whether it be in Lithuania or in Palakkad or in Ernakulam. It is also pertinent to note that the respondent had on several instances asked the petitioner regarding when the petitioner comes to India so as to make arrangements for staying along with the petitioner and minor daughter Naomi to build a strong family bond and for the welfare and well being of the family life. However, without providing a proper reply, the petitioner directly approached the station house officer of the Palarivattom police station alleging that the respondent never provided the visitorial right or custody of the minor child. Upon enquiry by the police officials, it was known that there exist no such situation and further that the respondent has suggested to have a visit to the police station or any other place where he shall accompany along with his minor child so as facilitate the petitioner to have the visitorial right and interim custody. However, for unknown reasons, the petitioner, on 31.03.2024, immediately left the station after seeing her daughter and without even spending any fruitful time with the minor daughter and family.

5. It is humbly submitted that the petitioner always showed rude and bad behaviour towards the minor daughter as well as toward the respondent. The petitioner always used to harass the minor daughter Naomi mentally and physically for even small acts and deeds without even considering her tender age. Though the same was objected by the respondent the petitioner never showed any curtesy to the same. The respondent have even warned that he is taking videos of such harassments and he shall provide complainants before appropriate authorities including the child welfare committee. However, these were never taken into consideration and the petitioner used to indulge into cruel treatment of the minor child. Further, it is also worthwhile to note that at present minor Naomi has cleared LKG cases and is awaiting for UKG classes in Greets Public School, Kaloor, Ernakulam. In the meantime, the minor child is currently going for classes to study classical dance and drawing. The teachers of minor Naomi had conveyed that she has good talent in dance as well as drawing. Hence, the prayers of the petitioners for granting interim custody of the minor child till 29.04.2024 to the petitioner ought not to be allowed and the above-numbered petition has been filed by the petitioner without bona fide. Hence, the petition has to be dismissed with costs, in the interest of justice.

Hence, in the above-stated facts and circumstances, the above-numbered I.A. filed by the petitioner is to be dismissed with costs, in the interest of justice.

All the facts stated above are true and correct to the best of my knowledge, information and belief.

Dated this the 12th day of April, 2024.

DEPONENT

Solemnly affirmed and signed before me by the deponent, who is known to me on this the 12th day of April, 2024 in my office.

ADVOCATE

True copy
✓
Adv.